

CRIMINAL LAW I: MASTER ALAC CASE DIGESTS & LEGAL DOCTRINES

Rigorous Law School Case Digests Formatted via ALAC Method (Answer - Legal Basis - Application - Conclusion)

Covering Dolo, Culpa, Mala In Se vs. Mala Prohibita, Omission, Mistake of Fact, Quasi-Offenses, and Constitutional Safeguards

CASE 1: People of the Philippines v. Custodio Gonzales, Sr.

Citation: G.R. No. 80762, March 19, 1990 | 183 SCRA 309 | Ponente: Sarmiento, J.

FACTS: Lloyd Peñacerrada was killed in Iloilo. Months after the incident, a lone eyewitness, Jose Huntoria (a tenant of the victim), testified that he saw spouses Augusto and Fausta Gonzales, their sons, and appellant Custodio Gonzales, Sr. stabbing the victim. Custodio raised an alibi. The trial court and CA convicted him of Murder.

ISSUE: *Is the delayed, uncorroborated testimony of a lone eyewitness sufficient to overcome the constitutional presumption of innocence and convict the accused of Murder beyond reasonable doubt?*

■ **[A] ANSWER:** NO. The uncorroborated, delayed eyewitness testimony failed to prove guilt beyond reasonable doubt; the appellant is ACQUITTED.

■ **[L] LEGAL BASIS:** Article III, Section 14(2) of the 1987 Constitution (Presumption of Innocence); Rule 133, Section 2 of the Rules of Court (Proof Beyond Reasonable Doubt); Fundamental Maxim: The prosecution must rely on the strength of its own evidence rather than the weakness of the defense.

■ **[A] APPLICATION:** Witness Jose Huntoria delayed reporting the incident to police for an extended period without satisfactory explanation, casting grave doubt on his veracity. Furthermore, he could not specify any single overt criminal act performed by Custodio during the assault. While alibi is generally weak, it gains strength and warrants acquittal where the prosecution evidence is inconclusive and fails to establish moral certainty.

■ **[C] CONCLUSION & DOCTRINE:** Judgment REVERSED; Custodio Gonzales, Sr. ACQUITTED. DOCTRINE: The unexplained long delay of a witness in disclosing the identity of the perpetrators impairs credibility; where the state fails to prove guilt beyond reasonable doubt, the defense of alibi must prosper.

CASE 2: People of the Philippines v. Romana Silvestre and Martin Atienza

Citation: 56 Phil. 353 (1931) | Ponente: Villa-Real, J.

FACTS: Martin Atienza entered a neighbor's house, announced his intention to burn it down, and ignited the roof. Romana Silvestre (his cohabitant) stood nearby, listened, and watched the fire without raising an alarm or calling for help. 48 houses were destroyed. Silvestre was convicted of Arson as an accomplice.

ISSUE: *Is a person who is passively present at the scene of a crime, and who remains silent without preventing its commission, criminally liable as an accomplice or by criminal omission under Article 3 of the RPC?*

■ **[A] ANSWER:** NO. Mere passive presence and silence do not constitute accomplice liability or a felony by omission; Romana Silvestre is ACQUITTED.

■ **[L] LEGAL BASIS:** Article 3 (Felonies by Omission) and Article 18 (Accomplices) of the Revised Penal Code (RPC).

■ **[A] APPLICATION:** An accomplice must participate by previous or simultaneous acts of material aid. Romana neither encouraged nor materially assisted Atienza. Furthermore, a felony by omission under Art. 3 RPC requires a positive legal duty imposed by statute to act. A private bystander has no statutory legal duty to prevent a crime or sound an alarm. Her inaction was a moral failing, not a penal offense.

■ **[C] CONCLUSION & DOCTRINE:** Romana Silvestre ACQUITTED. DOCTRINE: Mere passive presence, silence, or failure to prevent a felony without conspiracy or a statutory duty to act does not create criminal liability.

CASE 3: Potenciana Evangelista v. People of the Philippines

Citation: G.R. Nos. 108135-36, August 14, 2000 | 338 SCRA 180 / 337 SCRA 671 | Ponente: Ynares-Santiago, J.

FACTS: Evangelista, Chief of the BIR Revenue Accounting Division, signed a 1st Indorsement confirming a ₱180M tax credit for Tanduay Distillery in reliance upon official certifications and computations prepared by subordinate examiners. She was convicted by the Sandiganbayan under Section 3(e) of RA 3019.

ISSUE: *Can a public officer be held criminally liable under Section 3(e) of RA 3019 for signing official endorsements without proof of felonious intent (dolo), manifest partiality, or evident bad faith?*

■ **[A] ANSWER:** NO. Good faith reliance on subordinate reports negates criminal intent (dolo) and evident bad faith; the accused is ACQUITTED.

■ **[L] LEGAL BASIS:** Section 3(e) of Republic Act No. 3019 (Anti-Graft and Corrupt Practices Act); Article 3 of the Revised Penal Code (Requirement of Dolo / Malice in intentional offenses).

■ **[A] APPLICATION:** To convict under Sec. 3(e) of RA 3019, the State must prove manifest partiality, evident bad faith, or gross inexcusable negligence. Evangelista processed the endorsement in the regular course of administrative duties based on supporting documentation verified by designated subordinates. Good faith in public administration negates malicious intent.

■ **[C] CONCLUSION & DOCTRINE:** Conviction REVERSED; Evangelista ACQUITTED. DOCTRINE: An honest administrative reliance or error of judgment committed in good faith without corrupt design excludes criminal intent (dolo) and bars conviction under RA 3019.

CASE 4: Juanito R. Rimando v. Commission on Elections and Norma O. Magno

Citation: G.R. No. 176364, September 18, 2009 | 600 SCRA 389 | Ponente: Leonardo-De Castro, J.

FACTS: During an election gun ban, security guards of Rimando's security agency were caught bearing firearms outside their assigned stations. COMELEC ordered criminal charges filed against Rimando as president of the security company under Section 261(q) of the Omnibus Election Code.

ISSUE: *Can a corporate officer be held criminally liable for an election offense (malum prohibitum) committed by his employees when the penal statute does not expressly provide for vicarious liability?*

■ **[A] ANSWER:** NO. Penal statutes are strictly construed; corporate officers cannot be held vicariously liable without an express statutory command.

■ **[L] LEGAL BASIS:** Maxim: 'Nullum crimen, nulla poena sine lege' (No crime without law); Section 261(q) of the Omnibus Election Code (Batas Pambansa Blg. 881); General Rule of Strict Construction of Penal Statutes.

■ **[A] APPLICATION:** Criminal liability is strictly personal. Although election offenses are mala prohibita where criminal intent is non-essential, a person cannot be prosecuted unless the statute clearly defines his specific act or omission as criminal. Section 261(q) punishes the actual person bearing the gun; it does not impose vicarious criminal liability on company officers.

■ **[C] CONCLUSION & DOCTRINE:** COMELEC Resolutions SET ASIDE. DOCTRINE: Under the rule of strict construction, penal liability cannot be extended by implication or judicial construction to encompass vicarious liability absent explicit statutory text.

CASE 5: Dindo Villareal v. People of the Philippines

Citation: G.R. Nos. 151258, 154954, 155101, 178057 & 178080, February 1, 2012 | 664 SCRA 519 | Ponente: Sereno, J.

FACTS: Law freshman Lenny Villa died from severe physical trauma and pulmonary edema resulting from initiation hazing by the Aquila Legis Fraternity in 1991 (prior to the Anti-Hazing Law). The fraternity members were charged with Murder under the RPC.

ISSUE: *Are the fraternity members guilty of Intentional Homicide (Art. 249) or Reckless Imprudence Resulting in Homicide (Art. 365, RPC)?*

■ **[A] ANSWER:** The fraternity members are GUILTY OF RECKLESS IMPRUDENCE RESULTING IN HOMICIDE under Article 365 of the RPC.

■ **[L] LEGAL BASIS:** Article 3 (Dolo vs. Culpa), Article 249 (Homicide), and Article 365 (Imprudence and Negligence) of the Revised Penal Code.

■ **[A] APPLICATION:** Intentional homicide requires animus interficiendi (intent to kill). The evidence

demonstrated that the fraternity members intended only to test endurance and initiate neophytes, not to cause death. However, subjecting a human body to severe, unmitigated physical beatings without medical precautions was an act of gross negligence and inexcusable lack of foresight, constituting criminal culpa.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Reckless Imprudence Resulting in Homicide. DOCTRINE: Where death results from dangerous collective acts performed without felonious intent to kill (dolo), the offenders are criminally liable for a quasi-offense (culpa) under Article 365.

CASE 6: Melchor Maderazo, et al. v. People of the Philippines

Citation: G.R. No. 165065, September 26, 2006 | 503 SCRA 234 | Ponente: Callejo, Sr., J.

FACTS: Mayor Maderazo and municipal officials extrajudicially padlocked a public market stall and seized the goods of a delinquent tenant without a judicial warrant or court order. They were charged and convicted by the Sandiganbayan of Grave Coercion.

ISSUE: *Did the extrajudicial padlocking of the market stall without physical violence against the tenant constitute Grave Coercion (Art. 286) or Unjust Vexation (Art. 287)?*

■ **[A] ANSWER:** The accused are GUILTY OF UNJUST VEXATION under Article 287, Paragraph 2 of the Revised Penal Code.

■ **[L] LEGAL BASIS:** Article 286 (Grave Coercion), Article 287 (Unjust Vexation), RPC; The Variance Doctrine (Rule 120, Sec. 4, Rules of Criminal Procedure); Prohibition Against Extrajudicial Self-Help.

■ **[A] APPLICATION:** Grave coercion requires actual physical violence or intimidation upon the person. Because the stall was padlocked in the tenant's absence without violence on her person, grave coercion was not committed. However, under the Variance Doctrine, the unauthorized seizure unjustifiably annoyed, irritated, and distressed the tenant, constituting Unjust Vexation. Extrajudicial self-help is forbidden by law.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Unjust Vexation. DOCTRINE: Public officials cannot enforce claims through extrajudicial self-help; unauthorized property seizure without physical violence against the person constitutes Unjust Vexation under the variance doctrine.

CASE 7: United States v. Inocencio Apostol

Citation: 14 Phil. 92 (1909) | Ponente: Carson, J.

FACTS: Apostol burned dry brush on his agricultural land to clear the ground. A sudden, violent, abnormal gust of wind carried sparks across a wide distance, igniting and destroying his neighbor's house. He was convicted of Arson.

ISSUE: *Is the accused criminally liable for Arson when fire spreads and causes destruction due to an extraordinary, unexpected gust of wind?*

■ **[A] ANSWER:** NO. The fire was an exempting accident without fault or intention (caso fortuito); the accused is ACQUITTED.

■ **[L] LEGAL BASIS:** Article 12, Paragraph 4 of the Revised Penal Code (Accident / Caso Fortuito as an Exempting Circumstance); Article 3, RPC (Requirement of Dolo or Culpa).

■ **[A] APPLICATION:** Apostol was engaged in a lawful agricultural act on his own property, exercising ordinary care. There was no intent to destroy his neighbor's house (no dolo), nor was he negligent (no culpa), because the sudden gale of wind was an unforeseen, abnormal event. An injury resulting from mere accident without fault or intent is non-felonious.

■ **[C] CONCLUSION & DOCTRINE:** Conviction REVERSED; Apostol ACQUITTED. DOCTRINE: An unforeseen injury caused by mere accident during the performance of a lawful act with due care is completely exempt from criminal liability under Article 12(4) of the RPC.

CASE 8: United States v. Mariano Catolico

Citation: 18 Phil. 504 (1911) | Ponente: Moreland, J.

FACTS: A Justice of the Peace held ₱800 in appeal bonds in 16 ejectment cases. When the appeals were dismissed, he delivered the funds to the prevailing landowner under an honest, mistaken belief that the dismissal legally mandated satisfaction of the judgment. He was convicted of Malversation.

ISSUE: *Is a public officer guilty of Malversation when funds are disbursed under an honest mistake of law and in good faith, without corrupt or felonious intent?*

■ **[A] ANSWER:** NO. The act lacked criminal intent (mens rea); the accused is ACQUITTED.

■ **[L] LEGAL BASIS:** Maxim: 'Actus non facit reum nisi mens sit rea' (The act does not make one guilty unless the mind is guilty); Article 3, RPC; Presumption of Intent Rebutted by Good Faith.

■ **[A] APPLICATION:** While felonious intent is generally presumed from an unlawful act, this presumption is rebuttable. Catolico acted openly, under color of judicial authority, without pocketing any funds or acting with fraudulent design. His act was an honest error in applying procedural rules on appeal bonds. A blameless mistake committed in good faith excludes criminal liability.

■ **[C] CONCLUSION & DOCTRINE:** Catolico ACQUITTED. DOCTRINE: The presumption of criminal intent is rebutted by clear proof of good faith and honest mistake; an act committed without a guilty mind (mens rea) is not a felony.

CASE 9: People of the Philippines v. Eutiquia Carmen, et al.

Citation: G.R. No. 137268, March 26, 2001 | 355 SCRA 267 | Ponente: Quisumbing, J.

FACTS: Religious faith healers conducted an exorcism on a 13-year-old boy, banging his head, pounding his chest, submerging him in water, and stabbing him with a knife to expel an evil spirit, causing his death. The trial court convicted them of Murder with Treachery.

ISSUE: *Did the fatal acts performed during a faith-healing ritual constitute intentional Murder or Reckless Imprudence Resulting in Homicide under Article 365 of the RPC?*

■ **[A] ANSWER:** The accused are GUILTY OF RECKLESS IMPRUDENCE RESULTING IN HOMICIDE under Article 365 of the RPC.

■ **[L] LEGAL BASIS:** Article 3 (Dolo vs. Culpa), Article 248 (Murder), and Article 365 (Quasi-Offenses / Criminal Negligence) of the Revised Penal Code.

■ **[A] APPLICATION:** Murder requires animus interficiendi (specific intent to kill). The faith healers acted under the misguided belief that they were performing a healing ritual. While malice was absent, their violent physical methods and gross lack of medical skill constituted reckless imprudence resulting in death.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Reckless Imprudence Resulting in Homicide. DOCTRINE: Dangerous physical acts performed without felonious intent to kill in the course of unauthorized rituals constitute criminal negligence (culpa) under Article 365.

CASE 10: People of the Philippines v. Isabelo Puno and Enrique Amurao

Citation: G.R. No. 97471, February 17, 1993 | 219 SCRA 85 | Ponente: Regalado, J.

FACTS: A personal driver and his companion pointed a gun at their employer in her car, drove her around the city for several hours claiming NPA membership, extorted two checks for ₱7,000, and released her along EDSA. They were convicted of Kidnapping for Ransom.

ISSUE: *Is the offense Kidnapping for Ransom (Art. 267) or Robbery with Intimidation / Extortion (Art. 294, RPC)?*

■ **[A] ANSWER:** The crime committed is ROBBERY WITH INTIMIDATION under Article 294, Paragraph 5 of the Revised Penal Code.

■ **[L] LEGAL BASIS:** Article 267 (Kidnapping and Serious Illegal Detention) vs. Article 294 (Robbery with Violence Against or Intimidation of Persons) of the Revised Penal Code.

■ **[A] APPLICATION:** In Kidnapping for Ransom, the primary specific intent is to deprive the victim of liberty for an appreciable period. In Robbery with Intimidation, the primary intent is to extort money immediately, and any detention is purely incidental and momentary to the execution of the robbery. The accused never intended to lock up or conceal the victim.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED from Kidnapping to Robbery with Intimidation. DOCTRINE: Temporary restraint of a victim strictly incidental to immediate extortion on the spot constitutes

Robbery, not Kidnapping for Ransom.

CASE 11: People of the Philippines v. Marlon Delim, et al.

Citation: G.R. No. 142773, January 28, 2003 | 396 SCRA 386 | Ponente: Callejo, Sr., J.

FACTS: Armed men barged into the victim's home, tied his hands at gunpoint, and dragged him into the night. Four days later, his decomposing body was found in a river with multiple stab wounds. Convicted of Aggravated Kidnapping with Murder and sentenced to Death.

ISSUE: *Is the crime Aggravated Kidnapping with Murder under Art. 267, or Murder qualified by Treachery under Art. 248 of the RPC?*

■ **[A] ANSWER:** The crime committed is MURDER QUALIFIED BY TREACHERY under Article 248 of the Revised Penal Code.

■ **[L] LEGAL BASIS:** Article 248 (Murder) and Article 267 (Kidnapping) of the Revised Penal Code; The Doctrine of Primary Felonious Intent (Animus).

■ **[A] APPLICATION:** Where the primary specific intent of the culprits from the very inception is to kill the victim, the abduction and temporary restraint are merely the preparatory means to isolate and execute the victim. The unlawful detention is absorbed into the crime of Murder.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Murder; Death penalty reduced to Reclusion Perpetua. DOCTRINE: If the initial intent is to execute the victim, abduction is absorbed into Murder qualified by treachery.

CASE 12: People of the Philippines v. Vicente Temblor

Citation: G.R. No. 66884, May 28, 1988 | 161 SCRA 623 | Ponente: Gutierrez, Jr., J.

FACTS: The accused entered a variety store under the pretense of buying cigarettes and suddenly shot the storekeeper at point-blank range, taking his firearm. The victim's wife positively identified him in court. The defense claimed lack of motive and alibi.

ISSUE: *Is proof of motive indispensable when the accused is positively identified, and does sudden shooting under the guise of a customer constitute Treachery?*

■ **[A] ANSWER:** YES to Treachery; NO to Motive. Conviction for MURDER is AFFIRMED.

■ **[L] LEGAL BASIS:** Article 248, Paragraph 1 of the Revised Penal Code (Murder qualified by Treachery / Alevosia); Jurisprudence on Eyewitness Identification.

■ **[A] APPLICATION:** Proof of motive is essential only when the perpetrator's identity is unknown or

doubtful. Positive identification by a credible eyewitness dispenses with motive. Feigning to be a peaceful customer buying cigarettes to disarm the victim of any suspicion before shooting him at point-blank range constitutes Treachery.

■ **[C] CONCLUSION & DOCTRINE:** Conviction for Murder with Reclusion Perpetua **AFFIRMED**. DOCTRINE: Positive identification renders proof of motive immaterial; feigning a harmless transaction to execute a sudden attack constitutes treachery.

CASE 13: People of the Philippines v. Usman Hassan y Ayun

Citation: G.R. No. L-68969, January 22, 1988 | 157 SCRA 261 | Ponente: Sarmiento, J.

FACTS: An illiterate 15-year-old pushcart worker was presented alone (without a lineup) to the victim's grieving family and a lone witness at a funeral parlor. Convicted of Murder based on this suggestive show-up identification.

ISSUE: *Is an uncorroborated, suggestive show-up identification conducted without a police lineup constitutionally reliable to sustain a murder conviction?*

■ **[A] ANSWER:** NO. The suggestive identification violated due process and failed to prove guilt beyond reasonable doubt; the accused is **ACQUITTED**.

■ **[L] LEGAL BASIS:** Article III, Section 14 (Due Process and Presumption of Innocence), 1987 Constitution; Totality of Circumstances Test on Out-of-Court Identifications.

■ **[A] APPLICATION:** Presenting a single suspect alone in a funeral parlor before weeping relatives is impermissibly suggestive, coercive, and unreliable. Where the identity of the accused is in serious doubt, the total absence of motive powerfully reinforces the presumption of innocence.

■ **[C] CONCLUSION & DOCTRINE:** Conviction **REVERSED**; Usman Hassan **ACQUITTED**. DOCTRINE: A single-suspect 'show-up' identification is tainted and untrustworthy; when identity is doubtful, the absence of motive supports acquittal.

CASE 14: United States v. Ah Chong

Citation: 15 Phil. 488 (1910) | Ponente: Carson, J.

FACTS: A cook sleeping in a dark room was awakened by an intruder forcing open the locked door. Believing in good faith that an armed robber was breaking in, he called out twice without answer and struck with a kitchen knife, fatally wounding his roommate who was playing a prank.

ISSUE: *Is an accused criminally liable for homicide when he killed under an honest, non-negligent mistake of fact in putative self-defense?*

■ **[A] ANSWER:** NO. The killing is justified under the Mistake of Fact doctrine; the accused is

ACQUITTED.

■ **[L] LEGAL BASIS:** The Doctrine of Mistake of Fact ('Ignorantia facti excusat'); Article 11, Par. 1 (Self-Defense) in rel. to Article 3 (Dolo / Mens Rea), RPC.

■ **[A] APPLICATION:** Requisites of Mistake of Fact were met: (1) The act would have been completely lawful had the facts been as believed (killing an armed burglar in self-defense); (2) The intent was entirely innocent and non-felonious; and (3) The mistake was not due to negligence or lack of precaution, as the accused was in sudden nighttime darkness with an intruder forcing the door.

■ **[C] CONCLUSION & DOCTRINE:** Ah Chong ACQUITTED. DOCTRINE: Ignorantia facti excusat: A person who acts under an honest, blameless mistake of fact that would justify the act if true incurs no criminal liability.

CASE 15: People of the Philippines v. Antonio Z. Oanis and Alberto Galanta

Citation: 74 Phil. 257 (1943) | Ponente: Moran, J.

FACTS: Police officers ordered to arrest an armed fugitive entered a room and immediately shot a sleeping man with his back turned without verifying his identity. The victim was an innocent civilian (Serapio Tecson). Officers invoked mistake of fact and performance of duty.

ISSUE: *Can police officers claim mistake of fact or lawful performance of duty when they shoot a sleeping person without making any prior inquiry?*

■ **[A] ANSWER:** NO. The officers are GUILTY OF MURDER qualified by Treachery.

■ **[L] LEGAL BASIS:** Article 11, Paragraph 5 (Fulfillment of Duty), Article 248 (Murder), and Article 3 (Dolo), RPC.

■ **[A] APPLICATION:** Unlike Ah Chong, there was no sudden emergency or imminent threat. The victim was asleep with his back turned. The officers had ample time to verify his identity. Shooting a sleeping, unresisting civilian exceeds the lawful performance of duty and constitutes gross, inexcusable recklessness with treachery.

■ **[C] CONCLUSION & DOCTRINE:** Convicted of MURDER. DOCTRINE: Law enforcers must take reasonable precautions to establish identity; shooting a sleeping unverified suspect rejects mistake of fact and constitutes Murder.

CASE 16: Jason Ivler y Aguilar v. Hon. Maria Rowena Modesto-San Pedro

Citation: G.R. No. 172716, November 17, 2010 | 635 SCRA 191 | Ponente: Carpio, J.

FACTS: Ivler was charged in two separate informations arising from the same vehicular collision: (1) Reckless Imprudence Resulting in Slight Physical Injuries, and (2) Reckless Imprudence Resulting in Homicide & Damage. He pleaded guilty to the first and moved to quash the second on Double Jeopardy.

ISSUE: *Does a prior conviction for Reckless Imprudence Resulting in Slight Physical Injuries bar a subsequent prosecution for Reckless Imprudence Resulting in Homicide arising from the exact same negligent vehicular act?*

■ **[A] ANSWER:** YES. The second prosecution is BARRED by Double Jeopardy.

■ **[L] LEGAL BASIS:** Article 365 of the Revised Penal Code (Quasi-Offenses); Article III, Section 21 of the 1987 Constitution (Double Jeopardy).

■ **[A] APPLICATION:** Reckless imprudence under Art. 365 is not a mere modality of committing crimes; it is a single crime in itself. The gravamen of the offense is the single negligent mental act. A single negligent act cannot be split into multiple prosecutions simply because it caused multiple diverse injuries.

■ **[C] CONCLUSION & DOCTRINE:** Second Information DISMISSED. DOCTRINE: The Ivler Doctrine establishes that reckless imprudence is a single, indivisible quasi-offense; conviction of one consequence bars prosecution for all other consequences from the same act.

CASE 17: People of the Philippines v. Gabino Pugay and Benjamin Samson

Citation: G.R. No. 74324, November 17, 1988 | 167 SCRA 439 | Ponente: Medialdea, J.

FACTS: Pugay poured gasoline on a mentally impaired man as a prank. Samson spontaneously stepped forward, struck a match, and set the victim on fire, causing fatal burns. Both were convicted of Murder with Treachery.

ISSUE: *Did the accused act in conspiracy, and what are their individual criminal liabilities?*

■ **[A] ANSWER:** NO Conspiracy. Samson is guilty of Homicide with Praeter Intentionem; Pugay is guilty of Reckless Imprudence Resulting in Homicide.

■ **[L] LEGAL BASIS:** Article 13, Par. 3 (Praeter Intentionem), Article 249 (Homicide), and Article 365 (Reckless Imprudence) of the Revised Penal Code.

■ **[A] APPLICATION:** There was no prior agreement or common design. Samson's act of lighting the match was intentional, but he lacked intent to kill (praeter intentionem applies). Pugay's act of dousing gasoline was reckless and lacked due precaution, making him liable for criminal negligence under Art. 365.

■ **[C] CONCLUSION & DOCTRINE:** Convictions MODIFIED. DOCTRINE: In the absence of conspiracy, each actor is liable only for his own act; an impromptu prankster who ignites fire is liable for Homicide with praeter intentionem, while the gasoline pourer is liable for reckless imprudence.

CASE 18: Mario Gumabon, et al. v. Director of the Bureau of Prisons

Citation: G.R. No. L-30026, January 30, 1971 | 37 SCRA 420 | Ponente: Fernando, J.

FACTS: Petitioners pleaded guilty in 1953 to 'Rebellion with Murder' and received life sentences. In 1956, the SC decided *People v. Hernandez*, ruling that rebellion absorbs common crimes. Petitioners served 17 years and petitioned for Habeas Corpus.

ISSUE: *Does the favorable judicial doctrine in People v. Hernandez apply retroactively to final convictions under Art. 22 RPC and the Equal Protection Clause?*

■ **[A] ANSWER:** YES. Favorable judicial doctrines apply retroactively; Habeas Corpus is GRANTED and petitioners ORDERED RELEASED.

■ **[L] LEGAL BASIS:** Article 8 of the Civil Code (Jurisprudence as part of the legal system); Article 22 of the Revised Penal Code (Retroactivity of Favorable Penal Laws); Equal Protection Clause (Art. III, Sec. 1, Const.).

■ **[A] APPLICATION:** Judicial interpretations form part of the legal system and declare what the law has always meant. Under Art. 22 RPC, favorable rules apply retroactively even to convicts serving final sentences. Denying Hernandez to petitioners while granting it to later convicts violates Equal Protection and ousts the court of jurisdiction.

■ **[C] CONCLUSION & DOCTRINE:** Writ of Habeas Corpus GRANTED. DOCTRINE: Favorable judicial interpretations of penal statutes apply retroactively to final convictions pursuant to Article 22 RPC and the Equal Protection Clause.

CASE 19: In Re: Kay Villegas Kami, Inc.

Citation: G.R. No. L-32485, October 22, 1970 | 35 SCRA 429 | Ponente: Makasiar, J.

FACTS: A civic group challenged Section 12 of RA 6132 (1971 Con-Con Act), which prohibited civic/political groups from funding or supporting Con-Con candidates, claiming it was an unconstitutional ex post facto law and bill of attainder.

ISSUE: *Does Section 12 of RA 6132 constitute an ex post facto law or a bill of attainder?*

■ **[A] ANSWER:** NO. Section 12 of RA 6132 is purely prospective and constitutional.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution (Ban on Ex Post Facto Laws and Bills of Attainder); The Six Calder v. Bull Categories of Ex Post Facto Legislation.

■ **[A] APPLICATION:** Section 12 operates purely prospectively, penalizing only future acts committed during the election period after effectivity. It does not punish past acts or increase penalties for past conduct. It is not a bill of attainder because it does not inflict punishment without a judicial trial.

■ **[C] CONCLUSION & DOCTRINE:** Petition DISMISSED. DOCTRINE: The ex post facto prohibition applies strictly to penal laws operating retroactively; a bill of attainder requires legislative punishment without judicial trial.

CASE 20: People of the Philippines v. Mamerto Narvaez

Citation: G.R. Nos. L-33466-67, April 20, 1983 | 121 SCRA 389 | Ponente: Makasiar, J.

FACTS: Victims built a barbed-wire fence directly in front of Narvaez's house and rice mill, walling him in and blocking access. When Narvaez asked to talk, victim shouted and gestured toward his gun. In intense obfuscation, Narvaez shot and killed them with a shotgun. Convicted of 2 counts of Murder.

ISSUE: *Can defense of property justify killing under complete self-defense, or does it entitle the accused to privileged incomplete self-defense (Art. 69 RPC)?*

■ **[A] ANSWER:** Defense of property alone does NOT justify killing, but entitles the accused to PRIVILEGED INCOMPLETE SELF-DEFENSE (penalty lowered by 2 degrees).

■ **[L] LEGAL BASIS:** Article 11, Par. 1 (Self-Defense & Defense of Rights/Property), Article 13, Par. 1, and Article 69 (Privileged Incomplete Self-Defense), RPC.

■ **[A] APPLICATION:** Fencing off his house and destroying his ingress was an actual unlawful aggression against property rights without provocation. However, shooting victims with a shotgun lacked reasonable necessity. Because unlawful aggression was present, Narvaez was entitled to a 2-degree penalty reduction under Art. 69, plus mitigating passion/obfuscation and voluntary surrender.

■ **[C] CONCLUSION & DOCTRINE:** Conviction MODIFIED to Homicide; Penalty reduced; Narvaez ORDERED RELEASED. DOCTRINE: Aggression against property constitutes unlawful aggression for incomplete self-defense under Art. 69 RPC, but deadly force is not reasonably necessary unless personal safety is also imperiled.

CASE 21: People of the Philippines v. Augusto Loreto Ringor, Jr.

Citation: G.R. No. 123918, December 9, 1999 | 320 SCRA 342 | Ponente: Puno, J.

FACTS: Ringor shot a victim from behind with an unlicensed firearm in 1994. The trial court retroactively applied RA 8294 (enacted in 1997) to treat the unlicensed firearm as a special aggravating circumstance and sentenced him to DEATH.

ISSUE: *Can RA 8294 be applied retroactively to treat the use of an unlicensed firearm as an aggravating circumstance in a murder committed in 1994?*

■ **[A] ANSWER:** NO. Retroactive application of an aggravating amendment is an unconstitutional EX POST FACTO LAW.

■ **[L] LEGAL BASIS:** Article III, Section 22 of the Constitution; Article 22 of the Revised Penal Code (Non-retroactivity of unfavorable penal laws).

■ **[A] APPLICATION:** Under PD 1866 in force in 1994, illegal possession was a separate offense, not an aggravating circumstance in murder. Applying RA 8294 retroactively to elevate the penalty from reclusion perpetua to Death inflicts a greater punishment than annexed when committed, violating the ex post facto clause.

■ **[C] CONCLUSION & DOCTRINE:** Death penalty REDUCED to Reclusion Perpetua. DOCTRINE: Amendments introducing aggravating circumstances cannot be applied retroactively to prior offenses without violating the ex post facto prohibition.

CASE 22: People of the Philippines v. Hon. Alfredo Pimentel and Antonio Tujan

Citation: G.R. No. 100210, April 1, 1998 | 288 SCRA 542 | Ponente: Panganiban, J.

FACTS: Tujan was charged with Subversion under RA 1700 and Illegal Possession of Firearms under PD 1866. During appeal, Congress totally repealed RA 1700 via RA 7636.

ISSUE: *Did the total repeal of RA 1700 by RA 7636 retroactively extinguish criminal liability for subversion?*

■ **[A] ANSWER:** YES. Total statutory repeal decriminalizes the offense and retroactively extinguishes criminal liability.

■ **[L] LEGAL BASIS:** Article 22 of the Revised Penal Code (Retroactive Effect of Favorable Penal Statutes).

■ **[A] APPLICATION:** Where a penal statute is totally repealed without a saving clause, the crime is obliterated. Under Art. 22 RPC, beneficial laws apply retroactively to pending actions. The subversion charge was dismissed, and the firearm charge was reduced to simple possession.

■ **[C] CONCLUSION & DOCTRINE:** Subversion DISMISSED; Tujan ORDERED RELEASED due to overserved detention. DOCTRINE: The total repeal of a penal law without a saving clause applies retroactively to dismiss all pending prosecutions.

CASE 23: People of the Philippines v. Panfilo M. Lacson

Citation: 400 SCRA 267 (2003 - En Banc) | 382 SCRA 365 (2002) | 413 SCRA 20 (2003) | Ponente: Callejo, Sr., J.

FACTS: Murder cases against Lacson were provisionally dismissed on March 29, 1999. On Dec. 1, 2000, Section 8, Rule 117 took effect, establishing a 2-year time-bar on provisional dismissals. DOJ refiled cases on June 6, 2001. Lacson claimed the 2-year period lapsed on March 29, 2001.

ISSUE: Does Section 8, Rule 117 apply retroactively from the date of the provisional dismissal order or prospectively from the rule's effectivity date?

■ **[A] ANSWER:** Section 8, Rule 117 operates PROSPECTIVELY; the 2-year period runs from December 1, 2000.

■ **[L] LEGAL BASIS:** Section 8, Rule 117 of the Revised Rules of Criminal Procedure; Constitutional Right of the State to Procedural Due Process.

■ **[A] APPLICATION:** A time-bar permanently extinguishing criminal liability is substantive in nature. Procedural rules cannot apply retroactively if they prejudice the State's right to prosecute without fair notice. For dismissals prior to Dec. 1, 2000, the 2-year period began ONLY on Dec. 1, 2000 and ended Dec. 1, 2002. Refiling on June 6, 2001 was timely. Also, heirs were not notified, barring the time-bar.

■ **[C] CONCLUSION & DOCTRINE:** Motion to Quash DENIED; Refiling UPHOLD. DOCTRINE: Criminal time-bars are substantive and apply prospectively to protect the State's due process right to prosecute.

CASE 24: Joemar Ortega v. People of the Philippines

Citation: G.R. No. 151085, August 20, 2008 | 562 SCRA 450 | Ponente: Carpio-Morales, J.

FACTS: Ortega was 14 years old when he committed statutory rape in 1996 and was convicted under the RPC. While on appeal, RA 9344 (Juvenile Justice Act) took effect in 2006, exempting minors 15 and below from criminal liability.

ISSUE: Does RA 9344 apply retroactively to extinguish criminal liability of a minor, and does civil liability survive?

■ **[A] ANSWER:** YES to Retroactivity (Criminal liability extinguished); NO to Civil exemption (Civil liability survives).

■ **[L] LEGAL BASIS:** Section 6 of Republic Act No. 9344; Article 22 and Article 101 of the Revised Penal Code.

■ **[A] APPLICATION:** RA 9344 is a favorable special penal law granting absolute criminal exemption to minors 15 and below without requiring proof of discernment. Under Art. 22 RPC, it applies retroactively to dismiss criminal charges. However, under Art. 101 RPC and Sec. 6 RA 9344, civil liability ex delicto remains fully enforceable against parents/guardians.

■ **[C] CONCLUSION & DOCTRINE:** Criminal cases DISMISSED; Civil damages AFFIRMED; Ortega referred to community intervention. DOCTRINE: RA 9344 applies retroactively to extinguish criminal liability of children ≤15 years, while civil liability ex delicto survives.
